Module 3: Apple v. OpenAI — Student Packet

Start here — Apple v. OpenAI

Read before class (5–8 minutes): the three facts and three terms below. The full blog, company summary, filing, and detailed role pages are optional depth unless a specific passage is assigned.

In class: review the worked example, explain the decision in your own words, then read only your assigned role in the student packet below. Four leads make decisions; the Account Manager integrates them. The packet works without SkillSimm access.

Three essential facts

- This packet analyzes allegations in a complaint, not findings of fact.
- The complaint describes both employee access and supplier relationships as possible routes for disclosure.
- The case asks teams to compare prevention, disclosure, and enforcement costs.

Three terms

- Patent: protection that involves public disclosure and a defined legal claim.
- Trade secret: valuable information protected through reasonable secrecy measures.
- Appropriability: the ability to retain the benefits of an innovation.

Worked example — discuss before opening the simulation

Illustrative startup: a food venture has a private recipe and a visible package design. Discuss which information must remain secret and what disclosure would change. State what you would need to research before choosing protection.

Readiness check: What asset are you protecting, and how would disclosure change its value? Ask a teammate to explain the task back before starting.

Choose your role

Read the primer above and only your assigned role below. The detailed role pages and full company summary are optional references. Record the decision text, evidence, trade-off, and what would change your mind.

Financial Lead

Decision

Apple pleads it has "no adequate remedy at law." Where does the next protection dollar go?

Your four choices — pick one

- **(A) Treat it as a cost of doing business.** Over four hundred former employees now work there; we cannot police where people go or what they remember.
- **(B)** Into **patenting more of what can be patented.** A patent is at least enforceable without having to prove somebody took something.
- **(C)** Into the **enforcement action.** A credible, expensive, public case is what makes every contractual protection we have believable to the next employee and the next partner.
- **(D)** Into the **operational system that keeps secrecy intact** — need-to-know access, offboarding, supplier chain of custody. For information whose value dies on disclosure, the lawsuit begins after we have already lost the asset.

Need more evidence? Detailed role reference.

Marketing Lead

Decision

When the secret and the surprise are the same asset, what does the company say — and when?

Your four choices — pick one

- **(A) Say as little as possible about any of it, including the litigation.** Attention on the case is attention on what was taken.
- **(B) Say nothing about the products and everything about the consequences.** For unreleased hardware the surprise IS the asset; what we can publicise for free is what happens to people who take it.
- **(C) Make the protection programme visible** to candidates, partners and suppliers — people comply with rules they know exist and have seen enforced.
- **(D) Pre-announce roadmaps and milestones to establish public priority**, so nobody can later claim they got there first.

Need more evidence? Detailed role reference.

Operation Lead

Decision

Your secrets live at companies you do not control. Where do you act?

Your four choices — pick one

- **(A) Extend chain of custody and audit to every partner** holding our equipment or processes, not only to the components and the scrap.
- **(B) Fix authorisation at the partner boundary** — verified requests, named authorised contacts and purpose limits — because the pleaded failure was a partner who believed the instruction came from us.
- **(C) Narrow the circle** — fewer partners see any given process, and no partner sees enough of the system to reconstruct it.
- **(D) Restrict which suppliers may work with AI companies at all**, as a condition of doing business with us.

Need more evidence? Detailed role reference.

Tech Lead

Decision

A secret whose departure you cannot prove is a secret you cannot enforce. Where does engineering effort go?

Your four choices — pick one

- **(A) Instrument the exfiltration paths** — repository access logging, anomaly detection around departures, device custody — because every provable allegation in this complaint came from our own systems.
- **(B) Close the specific hole and the class of holes like it:** the authentication bug, unreturned devices, and access that survives a departure.
- **(C) Lock the environment down** so tightly that files cannot be moved or copied at all, and accept the friction as the cost of secrecy.
- **(D) Harden device management** — full-disk encryption, remote wipe, blocking personal email and removable media on work machines.

Need more evidence? Detailed role reference.

Account Manager

Hear the four leads; rank Budget, Disclosure, Partners, Detection from 1–4 and distribute 100 priority points in blocks of 10. Defend the first priority with evidence, describe one trade-off, and name a condition that would change your ranking. There is no required ranking independent of your reasoning.

Save before leaving

Decision → evidence and source → trade-off → change after discussion → concept and venture application. Keep your own copy for the reflection.

Venture workshop

Choose one asset in your venture. Compare two ways to protect it, identify a disclosure risk, and state what evidence would support your recommendation. **Output:** A protection-choice table for Midterm Section D.

Submission

Submit your individual reflection in the existing HuskyCT assignment at its current deadline. Use the five headings in the reflection guide; from October 20 onward, aim for 300–500 words. The workshop is project preparation, not a separate new graded submission.